

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

**NOTICE OF DEMURRER AND
DEMURRER TO PLAINTIFF'S FIRST
AMENDED COMPLAINT ("FAC")**

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 **TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:**

2 **PLEASE TAKE NOTICE** that on date and time to be set by the Court in Department 302
3 located at 400 McAllister St., San Francisco, CA, 94102, Defendant CSAA INSURANCE
4 EXCHANGE (“Defendant”) will move the Court, pursuant to Code of Civil Procedure sections
5 430.10 et seq., for an order sustaining Defendant’s Demurrer to Plaintiff FRANCISCUS DYLAN
6 ROSARIO’s First Amended Complaint (“FAC”).

7 This Demurrer will be based upon this Notice of Demurrer, Defendant’s Statement of
8 Demurrer, Defendant’s Memorandum of Points and Authorities, the Declaration of
9 Tyler J. O’Connell, Request for Judicial Notice, and all other pleadings, papers, and records on file
10 herein, and such other oral and documentary evidence as may be presented at the time of the hearing
11 of this Demurrer.

12 The demurrer must be sustained on the following grounds:

- 13 1. This Court does not have jurisdiction over the matters alleged in the FAC.
- 14 2. Plaintiff has other actions pending—including a pending appeal—which are
15 intertwined with the matters alleged in the FAC.
- 16 3. The FAC fails to state facts sufficient to constitute a viable cause of action.
- 17 4. The entire FAC is uncertain and legally unsupportable.
- 18 5. The FAC improperly targets Defendant’s protected litigation conduct under Civil
19 Code § 47(b).
- 20 6. The FAC presents an improper collateral attack on a prior valid judgment.
- 21 7. The relevant statute of limitations bars Plaintiff’s claims in the FAC.
- 22 8. Plaintiff does not have standing.

23 **TENTATIVE RULINGS**

24 A. The San Francisco Superior Court adopts CRC 3.1308 as the tentative ruling
25 procedure in civil law and motion and discovery matters. For Real Property Court, compliance with
26 8.10(B) is required.

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1 B. Parties may obtain a tentative ruling issued by the Law and Motion and Discovery
2 Departments by telephoning (415) 551-4000 or visiting the court's website at
3 <https://sf.courts.ca.gov/> and clicking the online services link. Changes in telephone numbers will
4 appear in the official newspapers.

5 C. A party who fails to appear at the hearing is deemed to submit to the tentative ruling.
6 However, no party may submit to a tentative ruling that specifies that a hearing is required.

7 D. Parties who intend to appear at the hearing must give notice to opposing parties and
8 the court promptly, but no later than 4:00 p.m. the day before the hearing unless the tentative ruling
9 has specified that a hearing is required. Notice of contesting a tentative ruling must be provided by
10 sending an email to the court to contestdept302tr@sftc.org with a copy to all other parties stating,
11 without argument, the portion(s) of the tentative ruling that the party contests. A party may not argue
12 at the hearing if the opposing party is not so notified and the opposing party does not appear.

13 E. If no party appears, or if a party does not appear because the opposing party failed to
14 give sufficient notice of intent to argue, then the tentative ruling will be adopted.

15 F. Tentative rulings are generally available by 3:00 p.m. the day before the hearing. A
16 tentative ruling that does not become available until after 3:00 p.m. is a late tentative ruling. A late
17 tentative ruling will indicate that the ruling is late. If a tentative ruling is late, the parties must appear
18 unless all parties agree to submit to a late tentative ruling in which case the Court will adopt the late
19 tentative ruling pursuant to subsection E above.

20 G. The prevailing party on a tentative ruling is required to prepare a proposed order
21 repeating verbatim the substantive portion of the tentative ruling and must bring the proposed order
22 to the hearing even if the motion is not opposed or the tentative ruling is not contested. If the
23 prevailing party is appearing at the hearing remotely, the proposed order may be sent to the court
24 by an email to contestdept302tr@sftc.org. If the proposed order is for a summary judgment and/or
25 adjudication motion, the proposed order must comply with requirements of CCP § 437c(g).

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1 If the proposed order is for a motion, such as a motion to withdraw as counsel, where there is a
2 Judicial Council form order, the prevailing party should complete the Judicial Council form as the
3 proposed order.
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6 Dated: April 13, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

8 By _____
9 Chad S. Tapp
10 Tyler J. O'Connell
11 Attorneys for Defendant
12 CSAA INSURANCE EXCHANGE
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1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***
2 **San Francisco County Superior Court Case No.: CGC-25-631802**

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **NOTICE OF DEMURRER**
7 **AND DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT ("FAC").**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

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16 Addressed as follows:

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18 **PLAINTIFF, IN PRO PER**

19 Franciscus Dylan Rosario
20 7624 Melody Drive
21 Rohnert Park, CA 94928
22 soltrinox@gmail.com

23 I declare under penalty of perjury under the laws of the State of California that the foregoing
24 is true and correct. Executed on Sacramento, California on April 13, 2026.

25 **Monique Schubert**
26 Monique Schubert
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